

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3702

By: Caldwell (Chad)

AS INTRODUCED

An Act relating to schools; amending 70 O.S. 2021, Section 1-109, as last amended by Section 1, Chapter 480, O.S.L. 2025 (70 O.S. Supp. 2025, Section 1-109), which relates to length of school year; requiring public schools to be in session for 185 days or 1,110 hours per year; allowing a school year length of 170 days if the school district adopts a certain policy; changing references from 181 days to 185 days; changing references from 1,086 hours to 1,110 hours; prohibiting school districts from counting professional meetings and parent-teacher conferences toward classroom instruction time; amending 70 O.S. 2021, Section 1-111, as last amended by Section 1, Chapter 4, O.S.L. 2024 (70 O.S. Supp. 2025, Section 1-111), which relates to the school day; amending Section 3, Chapter 492, O.S.L. 2025 (70 O.S. Supp. 2025, Section 1210.901), which relates to math proficiency screenings; amending 70 O.S. 2021, Section 1210.508C, as last amended by Section 2, Chapter 297, O.S.L. 2025 (70 O.S. Supp. 2025, Section 1210.508C), which relates to reading screenings; 70 O.S. 2021, Section 1210.5E, which relates to math remediation; amending 70 O.S. 2021, Section 4516, which relates to school calendars; updating references to length of school year; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

1 SECTION 1. AMENDATORY 70 O.S. 2021, Section 1-109, as
2 last amended by Section 1, Chapter 480, O.S.L. 2025 (70 O.S. Supp.
3 2025, Section 1-109), is amended to read as follows:

4 Section 1-109. A. For all public schools in this state, school
5 shall actually be in session and classroom instruction offered:

6 1. For not less than ~~one hundred eighty-one (181)~~ one hundred
7 eighty-five (185) days;

8 2. For not less than ~~one thousand eighty-six (1,086)~~ one
9 thousand one hundred ten (1,110) hours each school year, if a
10 district board of education adopts a school-hours policy and
11 notifies the State Board of Education prior to October 15 of the
12 applicable school year;

13 3. Beginning with the ~~2025-2026~~ 2026-2027 school year, for not
14 less than ~~one thousand eighty-six (1,086)~~ one thousand one hundred
15 ten (1,110) hours with a minimum of ~~one hundred sixty-six (166)~~ one
16 hundred seventy (170) days of instruction each school year, if a
17 district board of education adopts a school-hours policy and
18 notifies the State Board of Education prior to October 15 of the
19 applicable school year; or

20 4. Beginning with the ~~2025-2026~~ 2026-2027 school year, for not
21 less than ~~one thousand eighty-six (1,086)~~ one thousand one hundred
22 ten (1,110) hours each school year, if a district board of education
23 adopts a school-hours policy, notifies the State Board of Education
24 prior to October 15 of the applicable school year, and meets the

1 requirements established by the State Board of Education pursuant to
2 subsection H of this section.

3 B. A school district ~~may~~ shall not count ~~more than thirty (30)~~
4 hours each school year that are used for attendance of professional
5 meetings toward the ~~one hundred eighty-one (181)~~ one hundred eighty-
6 five (185) days or ~~one thousand eighty-six (1,086)~~ one thousand one
7 hundred ten (1,110) hours of classroom instruction time required in
8 subsection A of this section.

9 C. Teachers off contract with an employing district shall not
10 be required by the employing school district to attend professional
11 meetings unless the teacher is paid additional compensation for the
12 additional time. Teachers may be paid additional compensation for
13 attending professional meetings in excess of their contract term.
14 Subject to district board of education policy or collective
15 bargaining agreement, additional paid professional days may be
16 granted for individual teachers to attend or participate in
17 professional meetings, staff development training, or National Board
18 certification portfolio development as provided for in Section 6-
19 204.2 of this title.

20 D. A school district may authorize parent-teacher conferences
21 to be held during a regular school day. If authorized by the school
22 district, parent-teacher conferences shall not be counted ~~as~~ toward
23 the one hundred eighty-five (185) days or the one thousand one
24 hundred ten (1,110) hours of classroom instruction time ~~for no more~~

1 ~~than six (6) hours per semester, for a total of twelve (12) hours~~
2 ~~per school year~~ required in subsection A of this section.

3 E. A school district may maintain school for less than a full
4 school year only when conditions beyond the control of school
5 authorities make the maintenance of the term impossible and the
6 State Board of Education has been apprised and has expressed
7 concurrence in writing.

8 F. The State Board of Education shall establish criteria for an
9 extended-day schedule for schools subject to paragraph 1 of
10 subsection A of this section. The criteria shall:

11 1. Prescribe a lengthened school day within limits determined
12 not to be detrimental to quality instruction;

13 2. Ensure that the schedule is equivalent in annual hours of
14 instruction to the ~~one-hundred-eighty-one-day~~ one-hundred-eighty-
15 five-day school year specified in paragraph 1 of subsection A of
16 this section; and

17 3. Be consistent with the provisions of this section and
18 Sections 1-111 and 1-112 of this title but may result in fewer
19 annual days of instruction.

20 G. Notwithstanding the provisions of subsection F of this
21 section, a school district board of education subject to paragraph 1
22 of subsection A of this section may adopt and implement an extended-
23 day schedule subject to the following requirements:

1 1. The annual number of hours of instruction shall equal or
2 exceed ~~one thousand eighty-six (1,086)~~ one thousand one hundred ten
3 (1,110) hours, which is the equivalent of ~~one hundred eighty-one~~
4 ~~(181)~~ one hundred eighty-five (185) days of instruction as specified
5 in subsection A of this section for six (6) hours each day as
6 specified in Section 1-111 of this title;

7 2. The annual number of days of instruction shall equal or
8 exceed ~~one hundred eighty-one (181)~~ one hundred eighty-five (185)
9 days as specified in subsection A of this section;

10 3. The schedule adopted shall be consistent with the provisions
11 of Sections 1-111 and 1-112 of this title, except that for not more
12 than one (1) day per week, a school day shall consist of not less
13 than five (5) hours devoted to academic instruction in a regular
14 classroom setting;

15 4. The district shall hold a public hearing prior to the
16 adoption of an extended-day schedule authorized pursuant to this
17 subsection; and

18 5. The district shall document the impact on student
19 achievement as determined by the academic performance data score and
20 any other relevant factors that are a result of implementation of an
21 extended-day schedule authorized pursuant to this subsection and
22 provide an annual report to the State Board of Education of the
23 results. If improvement in student achievement cannot be documented
24 in the report, the district board of education shall revoke

1 authorization as provided by this subsection. If the district board
2 of education does not revoke authorization after student achievement
3 is not documented in the report, the State Board of Education may
4 deny accreditation of any school in violation of this subsection.

5 H. Beginning with the 2021-2022 school year, a school district
6 board of education may adopt a school-hours policy as provided for
7 by paragraph 4 of subsection A of this section only if it meets or
8 exceeds the minimum guidelines for student performance and school
9 district cost savings established by the State Board of Education.
10 The State Board of Education shall promulgate rules, subject to
11 approval by the Legislature, establishing the minimum guidelines for
12 student performance and school district cost savings.

13 I. If subject to paragraph 2 of subsection A of this section, a
14 district board of education or designee may elect to close a school
15 during the school day for inclement weather purposes. In such an
16 event, the number of hours incurred in classroom instruction time
17 prior to school closure shall be counted toward the ~~one thousand~~
18 ~~eighty-six (1,086)~~ one thousand one hundred ten (1,110) hours per
19 year requirement.

20 J. 1. Except as provided for in paragraph 2 of this
21 subsection, beginning with the 2026-2027 school year a school
22 district or charter school shall not count days or portions of days
23 when school is closed and virtual instruction is provided toward the
24 ~~one hundred eighty-one (181)~~ one hundred eighty-five (185) days or

1 ~~one thousand eighty-six (1,086)~~ one thousand one hundred ten (1,110)
2 hours of classroom instruction time required by subsection A of this
3 section. For the purposes of this subsection, "virtual instruction"
4 means the use of the Internet or other digital information
5 transmission systems as a form of instruction.

6 2. Beginning with the 2026-2027 school year, a school district
7 or charter school may count up to two (2) days or twelve (12) hours
8 when school is closed and virtual instruction is provided toward the
9 ~~one hundred eighty-one (181)~~ one hundred eighty-five (185) days or
10 ~~one thousand eighty-six (1,086)~~ one thousand one hundred ten (1,110)
11 hours of classroom instruction time required by subsection A of this
12 section only if:

- 13 a. the Superintendent of Public Instruction has approved
14 the virtual instruction plan submitted by a school
15 district board of education or charter school
16 governing board. A school district board of education
17 or charter school governing board shall approve its
18 virtual instruction plan, publish the plan on the
19 website for the school district or charter school, and
20 submit it to the Superintendent of Public Instruction
21 by November 1, 2025. The Superintendent shall approve
22 or disapprove all submitted virtual instruction plans
23 by January 31, 2026. A school district board of
24 education or charter school governing board shall

1 review its virtual instruction plan annually and
2 approve any necessary revisions for submission to the
3 Superintendent of Public Instruction by November 1
4 each subsequent year, and the Superintendent shall
5 approve or disapprove submitted plans by January 31
6 each subsequent year. If a plan is disapproved, the
7 school district board of education or charter school
8 governing board may approve a revised plan, publish it
9 on the website for the school district or charter
10 school, and submit it to the Superintendent. The plan
11 shall include a virtual needs assessment which shall
12 address availability of technology infrastructure to
13 deliver virtual instruction. The plan shall also
14 address how the school district or charter school
15 plans to provide:

- 16 (1) instruction to students on an Individualized
- 17 Education Program (IEP),
- 18 (2) child nutrition services, and
- 19 (3) transportation for students enrolled in
- 20 technology center school courses or programs,

21 b. a state of emergency or proclamation has been issued
22 by the Governor for a specific reason relating to
23 school district or charter school operations, and
24

1 c. the school district board of education or charter
2 school governing board approves the use of virtual
3 instruction.

4 3. The provisions of this subsection shall not apply to
5 statewide virtual charter schools or full-time virtual education
6 programs operated by a school district.

7 K. By June 30, 2027, and by June 30 each subsequent year, the
8 State Department of Education shall publish on its website and
9 electronically submit to the Governor, the President Pro Tempore of
10 the Senate, and the Speaker of the House of Representatives a report
11 with information regarding the use of virtual instruction as
12 authorized by subsection J of this section. The report shall
13 include, at a minimum:

14 1. The school districts and charter schools that closed school
15 and provided virtual instruction as authorized by subsection J of
16 this section and the length of time virtual instruction was
17 provided; and

18 2. The reason for which school was closed and virtual
19 instruction was provided.

20 L. Nothing in this section shall be construed as affecting the
21 right of an employing school district to require teachers as defined
22 in Section 6-101.3 of this title to work in excess of the ~~one~~
23 ~~thousand eighty-six (1,086)~~ one thousand one hundred ten (1,110)
24 hours required for student instruction. In addition, nothing in

1 this section shall be construed to affect the Fair Labor Standards
2 Act of 1938 status of any school district employee.

3 M. The provisions of this section shall not prohibit the
4 Oklahoma School for the Blind or the Oklahoma School for the Deaf
5 from adopting an alternative school-hours policy if the Oklahoma
6 School for the Blind or the Oklahoma School for the Deaf notifies
7 and receives approval from the State Board of Education prior to
8 October 15 of the applicable school year.

9 SECTION 2. AMENDATORY 70 O.S. 2021, Section 1-111, as
10 last amended by Section 1, Chapter 4, O.S.L. 2024 (70 O.S. Supp.
11 2025, Section 1-111), is amended to read as follows:

12 Section 1-111. A. Except as otherwise provided for by law, a
13 school day shall consist of not less than six (6) hours devoted to
14 school activities. A district board of education may elect to
15 extend the length of one (1) or more school days to more than six
16 (6) hours and reduce the number of school days as long as the total
17 amount of classroom instruction time is not less than ~~one thousand~~
18 ~~eighty (1,080)~~ one thousand one hundred ten (1,110) hours per year
19 as required pursuant to Section 1-109 of this title.

20 B. A school day for nursery, early childhood education,
21 kindergarten, and alternative education programs shall be as
22 otherwise defined by law or as defined by the State Board of
23 Education. Except as otherwise provided for in this subsection, not
24 more than one (1) school day shall be counted for attendance

1 purposes in any twenty-four-hour period. Two (2) school days, each
2 consisting of not less than six (6) hours, may be counted for
3 attendance purposes in any twenty-four-hour period only if one of
4 the school days is for the purpose of parent-teacher conferences
5 held as provided for in Section 1-109 of this title.

6 C. Except as provided in subsection D of this section, students
7 absent from school in which they are regularly enrolled may be
8 considered as being in attendance if the reason for such absence is
9 to participate in scheduled school activities under the direction
10 and supervision of a regular member of the faculty or to participate
11 in an online course approved by the district board of education.
12 The State Board of Education shall adopt rules to provide for the
13 implementation of supplemental online courses which shall include,
14 but not be limited to, provisions addressing the following:

15 1. Criteria for student admissions eligibility;

16 2. A student admission process administered through the
17 district of residence, which provides the ability for the student to
18 enroll in individual courses;

19 3. A process by which students are not denied the opportunity
20 to enroll in educationally appropriate courses by school districts.
21 For the purposes of this section, "educationally appropriate" means
22 any instruction that is not substantially a repeat of a course or
23 portion of a course that the student has successfully completed,
24 regardless of the grade of the student, and regardless of whether a

1 course is similar to or identical to the instruction that is
2 currently offered in the school district;

3 4. Creation of a system which provides ongoing enrollment
4 access for students throughout the school year;

5 5. A grace period of fifteen (15) calendar days from the first
6 day of an online course for student withdrawal from an online course
7 without academic penalty;

8 6. Mastery of competencies for course completion rather than
9 Carnegie units;

10 7. Student participation in extracurricular activities in
11 accordance with school district eligibility rules and policies and
12 any rules and policies of a private organization or association
13 which provides the coordination, supervision, and regulation of the
14 interscholastic activities and contests of schools;

15 8. Parent authorization for release of state test results to
16 online course providers, on a form developed by the State Department
17 of Education; and

18 9. A review process to identify and certify online course
19 providers and a uniform payment processing system.

20 D. Except as provided in paragraph 3 of this subsection,
21 students absent from school in which they are regularly enrolled
22 shall be given an excused absence if the reason for such absence is
23 to participate in scheduled 4-H activities or programs as approved
24 by the county 4-H educator. The number of excused absences allowed

pursuant to this subsection shall be subject to the attendance policy of the school district board of education.

1. Upon request from a school principal or attendance officer, a 4-H educator shall provide documentation as proof of student participation in an activity or program sponsored by 4-H.

2. Students shall be given the opportunity to make up any schoolwork missed while they are participating in activities or programs sponsored by 4-H. Students shall not have their class grades adversely affected for lack of attendance or participation due to their participation in activities or programs sponsored by 4-H.

3. A school principal or his or her designee shall not credit a student who participates in an activity or program sponsored by 4-H with an excused absence if the participation occurs during:

a. the schedule established by the State Board of Education for the administration of statewide student assessments, or

b. any period of time for which the student has been disciplined, suspended, or expelled, if the terms of punishment would preclude the student from participating in an educational field trip or extracurricular activity.

E. Each district board of education shall adopt policies and procedures that conform to rules for online courses as adopted by

1 the State Board. Such policies shall include criteria for approval
2 of the course, the appropriateness of the course for a particular
3 student, authorization for full-time students to enroll in online
4 courses, and establishing fees or charges. No district shall be
5 liable for payment of any fees or charges for any online course for
6 a student who has not complied with the district's policies and
7 procedures. School districts shall not deny students the
8 opportunity to enroll in educationally appropriate courses and shall
9 provide an admissions process which includes input from the student,
10 the parent or legal guardian of the student, and school faculty.

11 F. Districts shall require students enrolled in online courses
12 to participate in the Oklahoma School Testing Program Act. Students
13 participating in online courses from a remote site will be
14 responsible for providing their own equipment and Internet access,
15 unless the district chooses to provide the equipment. Credit may
16 not be granted for such courses except upon approval of the State
17 Board of Education and the district board of education.

18 G. Nothing in this section shall prohibit a student who
19 transfers from the district in which the student resides to another
20 school district pursuant to the Education Open Transfer Act from
21 enrolling in a full-time virtual education program offered by the
22 receiving school district. A student who enrolls pursuant to this
23 subsection shall be subject to the provisions of Section 8-103.2 of
24 this title. The board of education of a school district with a

1 full-time virtual education program shall adopt a policy to
2 determine the number of transfer students the program has the
3 capacity to accept in each grade level, as provided for in Section
4 8-101.2 of this title.

5 H. Districts may provide students with opportunities for
6 blended instruction. "Blended instruction" shall mean a combination
7 of brick-and-mortar learning and virtual learning environments that
8 includes elements of a student's control over place, pace, and path
9 of learning. A student in blended instruction may work on virtual
10 courses at home or at school in a blended flex lab but shall
11 participate in at least one unit or set of competencies as defined
12 by Section 11-103.6 of this title at a physical school building in a
13 traditional classroom setting which is the academic equivalent of
14 one (1) hour per day for each instructional day in the school year
15 as defined by Section 1-109 of this title.

16 I. The school day for kindergarten may consist of six (6) hours
17 devoted to school activities.

18 SECTION 3. AMENDATORY Section 3, Chapter 492, O.S.L.
19 2025 (70 O.S. Supp. 2025, Section 1210.901), is amended to read as
20 follows:

21 Section 1210.901. A. To identify students who have a math
22 deficiency including students with characteristics of dyscalculia,
23 each student enrolled in second, third, fourth, and fifth grade in a
24 public school in this state shall be screened at the beginning,

1 middle, and end of each school year for math proficiency including,
2 but not limited to, real-world problem-solving skills, procedural
3 fluency, conceptual understanding, and productive dispositions. A
4 screening instrument approved by the State Board of Education shall
5 be utilized for the purposes of this section. In determining which
6 screening instrument to approve, the State Board of Education shall
7 take into consideration, at a minimum, the following factors:

8 1. The time required to conduct the screening instrument with
9 the intention of minimizing the impact on instructional time;

10 2. The timeliness in reporting screening instrument results to
11 teachers, administrators, and parents or legal guardians of
12 students; and

13 3. The integration of the screening instrument into the math
14 curriculum.

15 B. Beginning in the 2026-2027 school year, the State Board of
16 Education shall approve a list of screening instruments for use at
17 the beginning, middle, and end of the school year for monitoring
18 progress and measurement of math proficiency as required in
19 subsection A of this section. The screening instrument shall:

20 1. Assess mathematical proficiency, which is a combination of
21 real-world problem-solving skills, procedural fluency, conceptual
22 understanding, and productive dispositions for the grade level as
23 defined by the state's subject matter standards;

24 2. Document the validity and reliability of each assessment;

1 3. Be used for identifying students who are at risk for math
2 deficiencies and for progress monitoring throughout the school year;

3 4. Be used to assess students with disabilities and English
4 language learners; and

5 5. Be accompanied by a data management system that provides
6 profiles of students, class, grade level, and school building. The
7 profiles shall identify each student's instructional point of need,
8 competency for advanced math coursework, and math proficiency level.

9 The State Board of Education shall also determine other comparable
10 math assessments for diagnostic purposes to be used for students at
11 risk of math failure.

12 C. 1. Exemptions to the screening requirements required by
13 this section may be provided to students who have documented
14 evidence that they meet at least one of the following criteria as
15 related to the provision of classroom instruction:

16 a. the student participates in the Oklahoma Alternate
17 Assessment Program (OAAP) and is taught using
18 alternate methods,

19 b. the student's primary expressive or receptive
20 communication is sign language,

21 c. the student's primary form of written or read text is
22 Braille, or

23 d. the student's primary expressive or receptive language
24 is not English, the student is identified as an

English learner using a state-approved identification assessment, and the student has had less than one (1) school year of instruction in an English-learner program.

2. A public school that grants an exemption pursuant to paragraph 1 of this subsection shall provide ongoing evidence of student progression toward English language acquisition with the same frequency as administration of screening assessments. Evidence may include, but not be limited to, student progression toward OAAP math essential elements, proficiency in sign language and mathematical reasoning, and proficiency in Braille and mathematical concepts.

D. 1. Students who are administered a screening instrument pursuant to subsection A of this section and are found to be exceeding grade-level targets shall be provided advanced learning opportunities in mathematics approved for that student's grade level. No student who qualifies pursuant to this subsection shall be removed from the advanced learning opportunity provided to the student unless a parent or legal guardian of the student provides written consent for the student to be excluded or removed after being adequately informed that the student's placement was determined by the student's achievement on the screening instrument.

2. Students who are administered a screening instrument pursuant to subsection A of this section and are found not to be

1 meeting grade-level targets shall be provided a program of math
2 instruction designed to enable students to acquire the appropriate
3 grade-level math proficiency. The program of math instruction shall
4 be based on scientific math research and align with the subject
5 matter standards adopted by the State Board of Education. A program
6 of math instruction shall include:

- 7 a. sufficient additional in-school instructional time for
8 the acquisition of mathematical proficiency, which is
9 a combination of real-world problem-solving skills,
10 procedural fluency, conceptual understanding, and
11 productive dispositions,
- 12 b. if necessary and if funding is available, tutorial
13 instruction after regular school hours, on Saturdays,
14 and during summer; however, such instruction may not
15 be counted toward the ~~one-hundred-eighty-day~~ one-
16 hundred-eighty-five-day or ~~one-thousand-eighty-hour~~
17 one-thousand-one-hundred-ten-hour school year required
18 in Section 1-109 of ~~Title 70 of the Oklahoma Statutes~~
19 this title,
- 20 c. assessments identified for diagnostic purposes and
21 periodic monitoring to measure the acquisition of math
22 proficiency including, but not limited to, real-world
23 problem-solving skills, procedural fluency, conceptual
24 understanding, and productive dispositions, as

1 identified in the student's program of math
2 instruction,

3 d. high-quality instructional materials grounded in
4 scientifically based math research, and

5 e. a means of providing every family of a student in
6 second, third, fourth, and fifth grade access to free
7 online evidence-based math instruction resources to
8 support the student's math development at home.

9 3. A student enrolled in second, third, fourth, and fifth grade
10 who exhibits a deficiency in math at any time based on the screening
11 instrument administered pursuant to subsection A of this section
12 shall receive an individual math intervention plan no later than
13 thirty (30) days after the identification of the deficiency in math.
14 The math intervention plan shall be provided in addition to core
15 math instruction that is provided to all students. The math
16 intervention plan shall:

17 a. describe the research-based math intervention services
18 the student will receive to remedy the deficiency in
19 math,

20 b. provide explicit and systematic instruction in real-
21 world problem-solving skills, procedural fluency,
22 conceptual understanding, and productive dispositions,
23 as applicable,

- c. monitor the math progress of each student's math proficiency throughout the school year and adjust instruction according to the student's needs, and
- d. continue until the student is determined to be meeting grade-level targets in math based on screening instruments administered pursuant to subsection A of this section or assessments identified for diagnostic purposes and periodic monitoring pursuant to subparagraph c of paragraph 2 of this subsection.

4. The math intervention plan for each student identified with a deficiency in math shall be developed by a student math proficiency team and shall include supplemental instructional services and supports. Each team shall be comprised of:

- a. the parent or legal guardian of the student,
- b. the teacher assigned to the student who had responsibility for math instruction in that academic year,
- c. a teacher who is responsible for math instruction and is assigned to teach in the next grade level of the student, and
- d. a teacher who specializes in math interventions, if one is available.

5. A school district shall notify the parent or legal guardian of any student in second, third, fourth, and fifth grade who

exhibits a deficiency in math at any time based on the screening instrument administered pursuant to subsection A of this section. The notification shall occur no later than thirty (30) days after the identification of the deficiency in math.

SECTION 4. AMENDATORY 70 O.S. 2021, Section 1210.508C, as last amended by Section 2, Chapter 297, O.S.L. 2025 (70 O.S. Supp. 2025, Section 1210.508C), is amended to read as follows:

Section 1210.508C. A. To identify students who have characteristics of dyslexia that lead to or cause reading difficulty, each student enrolled in kindergarten and first, second, and third grade in a public school in this state shall be screened at the beginning, middle, and end of each school year for reading skills including, but not limited to, phonological awareness, decoding, fluency, vocabulary, and comprehension. A screening instrument approved by the State Board of Education, in consultation with the Commission for Educational Quality and Accountability and the Secretary of Education, shall be utilized for the purposes of this section. In determining which screening instrument to approve, the State Board of Education, the Commission for Educational Quality and Accountability, and the Secretary of Education shall take into consideration at a minimum the following factors:

1. The time required to conduct the screening instrument with the intention of minimizing the impact on instructional time;

1 2. The timeliness in reporting screening instrument results to
2 teachers, administrators, and parents and legal guardians of
3 students; and

4 3. The integration of the screening instrument into reading
5 curriculum.

6 B. Beginning in the 2025-2026 school year, the State Board of
7 Education shall approve no fewer than three screening instruments
8 for use at the beginning, middle, and end of the school year for
9 monitoring of progress and for measurement of reading skills as
10 required in subsection A of this section. The screening instruments
11 shall meet the following criteria:

12 1. Assess for phonological awareness, decoding, fluency,
13 vocabulary, and comprehension;

14 2. Document the validity and reliability of each assessment;

15 3. Can be used for identifying students who are at risk for
16 reading deficiency and progress monitoring throughout the school
17 year;

18 4. Can be used to assess students with disabilities and English
19 language learners; and

20 5. Accompanied by a data management system that provides
21 profiles of each student, class, grade level, and school building.
22 The profiles shall identify each student's instructional point of
23 need and reading achievement level. The State Board shall also
24

determine other comparable reading assessments for diagnostic purposes to be used for students at risk of reading failure.

C. 1. Exemptions to the screening requirements of this section may be provided to students who have documented evidence that they meet at least one of the following criteria as related to the provision of classroom instruction:

- a. the student participates in the Oklahoma Alternate Assessment Program (OAAP) and is taught using alternate methods,
- b. the student's primary expressive or receptive communication is sign language,
- c. the student's primary form of written or read text is Braille, or
- d. the student's primary expressive or receptive language is not English, the student is identified as an English learner using a state-approved identification assessment, and the student has had less than one (1) school year of instruction in an English-learner program.

2. A public school that grants an exemption pursuant to paragraph 1 of this subsection shall provide ongoing evidence of student progression toward English language acquisition with the same frequency as administration of screening assessments. Evidence may include, but not be limited to, student progression toward OAAP

1 reading essential elements, proficiency in sign language and reading
2 comprehension, and proficiency in Braille and reading comprehension.

3 D. 1. Students who are administered a screening instrument
4 pursuant to subsection A of this section and are found not to be
5 meeting grade-level targets shall be provided a program of reading
6 instruction designed to enable students to acquire the appropriate
7 grade-level reading skills. The program of reading instruction
8 shall be based on scientific reading research and align with the
9 subject matter standards adopted by the State Board of Education. A
10 program of reading instruction shall include:

- 11 a. sufficient additional in-school instructional time for
12 the acquisition of phonological awareness, decoding,
13 fluency, vocabulary, and comprehension,
- 14 b. if necessary and if funding is available, tutorial
15 instruction after regular school hours, on Saturdays,
16 and during summer; however, such instruction may not
17 be counted toward the ~~one-hundred-eighty-day~~ one-
18 hundred-eighty-five-day or ~~one-thousand-eighty-hour~~
19 one-thousand-one-hundred-ten-hour school year required
20 in Section 1-109 of this title,
- 21 c. assessments identified for diagnostic purposes and
22 periodic monitoring to measure the acquisition of
23 reading skills including, but not limited to,
24 phonological awareness, decoding, fluency, vocabulary,

1 and comprehension, as identified in the student's
2 program of reading instruction,

3 d. high-quality instructional materials grounded in
4 scientifically based reading research, and

5 e. a means of providing every family of a student in
6 prekindergarten, kindergarten, and first, second, and
7 third grade access to free online evidence-based
8 literacy instruction resources to support the
9 student's literacy development at home.

10 2. A student enrolled in kindergarten or first, second, or
11 third grade who exhibits a deficiency in reading at any time based
12 on the screening instrument administered pursuant to subsection A of
13 this section shall receive an individual reading intervention plan
14 no later than thirty (30) days after the identification of the
15 deficiency in reading. The reading intervention plan shall be
16 provided in addition to core reading instruction that is provided to
17 all students. The reading intervention plan shall:

18 a. describe the research-based reading intervention
19 services the student will receive to remedy the
20 deficiency in reading,

21 b. provide explicit and systematic instruction in
22 phonological awareness, decoding, fluency, vocabulary,
23 and comprehension, as applicable,
24

- c. monitor the reading progress of each student's reading skills throughout the school year and adjust instruction according to the student's needs, and
- d. continue until the student is determined to be meeting grade-level targets in reading based on screening instruments administered pursuant to subsection A of this section or assessments identified for diagnostic purposes and periodic monitoring pursuant to subparagraph c of paragraph 1 of this subsection.

3. The reading intervention plan for each student identified with a deficiency in reading shall be developed by a Student Reading Proficiency Team and shall include supplemental instructional services and supports. Each team shall be composed of:

- a. the parent or legal guardian of the student,
- b. the teacher assigned to the student who had responsibility for reading instruction in that academic year,
- c. a teacher who is responsible for reading instruction and is assigned to teach in the next grade level of the student, and
- d. a certified reading specialist or an individual with advanced training or specialization in literacy instruction, if one is available.

1 4. A school district shall notify the parent or legal guardian
2 of any student in kindergarten or first, second, or third grade who
3 exhibits a deficiency in reading at any time based on the screening
4 instrument administered pursuant to subsection A of this section.
5 The notification shall occur no later than thirty (30) days after
6 the identification of the deficiency in reading.

7 E. 1. Every school district shall adopt and implement a
8 district strong readers plan which has had input from school
9 administrators, teachers, and parents and legal guardians and if
10 possible a reading specialist, and which shall be submitted
11 electronically to and approved by the State Board of Education. The
12 plan shall be updated annually. School districts shall not be
13 required to electronically submit the annual updates to the Board if
14 the last plan submitted to the Board was approved and expenditures
15 for the program include only expenses relating to individual and
16 small group tutoring, purchase of and training in the use of
17 screening and assessment measures, summer school programs, and
18 Saturday school programs. If any expenditure for the program is
19 deleted or changed or any other type of expenditure for the program
20 is implemented, the school district shall be required to submit the
21 latest annual update to the Board for approval. The district strong
22 readers plan shall include a plan for each site which includes an
23 analysis of the data provided by the Oklahoma School Testing Program
24 and other reading assessments utilized as required in this section,

1 and which outlines how each school site will comply with the
2 provisions of the Strong Readers Act.

3 2. The State Board of Education shall adopt rules for the
4 implementation and evaluation of the provisions of the Strong
5 Readers Act. The evaluation shall include, but not be limited to,
6 an analysis of the data required in subsection L of this section.

7 F. 1. Any first-grade, second-grade, or third-grade student
8 who demonstrates proficiency in reading through a grade-level
9 appropriate screening instrument approved pursuant to subsection B
10 of this section shall not require a program of reading instruction
11 or an individual reading intervention plan. After a student has
12 demonstrated proficiency through a screening instrument, the
13 district shall provide notification to the parent or legal guardian
14 of the student that he or she has satisfied the requirements of the
15 Strong Readers Act. The district shall continue to monitor the
16 student in the next successive grade level to ensure he or she
17 maintains proficiency.

18 2. Beginning with the 2025-2026 school year, if a third-grade
19 student is identified at any point of the academic year as having a
20 significant reading deficiency, which shall be defined as not
21 meeting grade-level targets on a screening instrument administered
22 pursuant to subsection A of this section, the district shall provide
23 the student with intensive intervention services for the appropriate
24 amount of the instructional day consistent with the individual

1 reading intervention plan developed pursuant to paragraph 2 of
2 subsection D of this section and as determined by the Student
3 Reading Proficiency Team. Intensive intervention services shall
4 continue until the student demonstrates proficiency at his or her
5 grade level based on a screening instrument administered pursuant to
6 subsection A of this section.

7 G. Each school district shall annually report in an electronic
8 format to the State Department of Education, the Office of
9 Educational Quality and Accountability, and the Secretary of
10 Education the number of students in kindergarten through third grade
11 per grade level who exhibit grade-level reading proficiency, the
12 number of students per grade level who received intensive
13 intervention services pursuant to paragraph 2 of subsection F of
14 this section, the number of students per grade level who attended a
15 summer academy as provided for in Section 1210.508E of this title,
16 the number of students per grade level who exhibited improved
17 reading proficiency after completion of intensive intervention
18 services, and the number of students per grade level who are still
19 in need of intensive intervention services. The State Department of
20 Education shall publicly report the aggregate and district-specific
21 numbers submitted pursuant to this subsection on its website and
22 shall provide electronic copies of the report to the Governor,
23 Secretary of Education, President Pro Tempore of the Senate, Speaker
24 of the House of Representatives, and to the respective chairs of the

1 committees with responsibility for common education policy in each
2 legislative chamber.

3 H. The parent of any student who is found to have a reading
4 deficiency and is not meeting grade-level reading targets and has
5 been provided a program of reading instruction as provided for in
6 paragraph 1 of subsection D of this section shall be notified in
7 writing of the following:

8 1. That the student has been identified as having a substantial
9 deficiency in reading;

10 2. A description of the current services that are provided to
11 the student pursuant to subsection D of this section;

12 3. A description of the proposed intensive intervention
13 services and supports that will be provided to the student that are
14 designed to remediate the identified area of reading deficiency as
15 provided for in paragraph 2 of subsection F of this section;

16 4. That a student who is promoted to the fourth grade shall
17 receive supplemental intensive intervention services;

18 5. Strategies for parents to use in helping their child succeed
19 in reading proficiency; and

20 6. The grade-level performance scores of the student.

21 I. No student may be assigned to a grade level based solely on
22 age or other factors that constitute social promotion.

23 J. 1. Each school district board of education shall annually
24 publish on the school website and report electronically to the State

1 Department of Education, the Office of Educational Quality and
2 Accountability, and the Secretary of Education by September 1 of
3 each year the following information on the prior school year:

- 4 a. the policies and procedures adopted by the school
5 district board of education to implement the
6 provisions of this section. The information submitted
7 shall include expenditures related to implementing the
8 provisions of this section, the number of staff
9 implementing the provisions of this section, and
10 average daily classroom time devoted to implementing
11 the provisions of this section,
- 12 b. by grade, the number and percentage of all students in
13 kindergarten through third grade who did not meet
14 grade-level targets based on a screening instrument
15 administered pursuant to subsection A of this section,
- 16 c. by grade, the number and percentage of all students in
17 kindergarten through third grade who have been
18 enrolled in the district for fewer than two (2) years,
- 19 d. by grade, the number and percentage of students in
20 kindergarten through third grade who demonstrated
21 grade-level proficiency based on a screening
22 instrument administered pursuant to subsection A of
23 this section, and

1 e. by grade, the number and percentage of students in
2 kindergarten through third grade who are on an
3 individualized education program (IEP) in accordance
4 with the Individuals with Disabilities Education Act
5 (IDEA) and who demonstrated grade-level proficiency
6 based on a screening instrument administered pursuant
7 to subsection A of this section or an alternative
8 assessment prescribed by the student's IEP.

9 2. The State Department of Education shall establish a uniform
10 format for school districts to report the information required in
11 this subsection. The format shall be developed with input from
12 school districts and shall be provided not later than ninety (90)
13 days prior to the annual due date. The Department shall annually
14 compile the information required, along with state-level summary
15 information, and electronically report the information to the
16 public, the Governor, the Secretary of Education, the President Pro
17 Tempore of the Senate, and the Speaker of the House of
18 Representatives.

19 K. The State Department of Education shall provide technical
20 assistance as needed to aid school districts in administering the
21 provisions of the Strong Readers Act.

22 L. On or before January 31 of each year, the State Department
23 of Education shall electronically submit to the Governor, the
24 President Pro Tempore of the Senate, the Speaker of the House of

1 Representatives, and members of the committees with responsibility
2 over common education in both houses of the Legislature a Strong
3 Readers Report which shall include, but is not limited to, trend
4 data detailing three (3) years of data, disaggregated by student
5 subgroups to include economically disadvantaged, major racial or
6 ethnic groups, students with disabilities, and English language
7 learners, as appropriate for the following:

8 1. The statewide aggregate number and percentage of students in
9 kindergarten through third grade determined to be at risk for
10 reading difficulties compared to the total number of students
11 enrolled in each grade;

12 2. The statewide aggregate number and percentage of students in
13 kindergarten who continue to be at risk for reading difficulties as
14 determined by the year-end administration of the screening
15 instrument required in subsection A of this section;

16 3. The statewide aggregate number and percentage of students in
17 kindergarten through third grade who have successfully completed
18 their program of reading instruction and are reading on grade level
19 as determined by the results of screening instruments administered
20 pursuant to subsection A of this section;

21 4. The statewide aggregate and district-specific number and
22 percentage of students that meet or do not meet grade-level targets
23 for reading based on screening instruments administered pursuant to
24 subsection A of this section;

1 5. The amount of funds received by each district for
2 implementation of the Strong Readers Act;

3 6. An evaluation and narrative interpretation of the report
4 data analyzing the impact of the Strong Readers Act on students'
5 ability to read at grade level;

6 7. The type of reading instruction practices and methods
7 currently being used by school districts in the state;

8 8. Socioeconomic information, access to reading resources
9 outside of school, and screening for and identification of learning
10 disabilities for students not reading at the appropriate grade level
11 in kindergarten and first through third grade;

12 9. By grade level, the types of intensive intervention efforts
13 being conducted by school districts for students who are not on an
14 IEP and who are not reading at the appropriate grade level and for
15 students who are on an IEP and who are not reading at the
16 appropriate grade level; and

17 10. Any recommendations for improvements or amendments to the
18 Strong Readers Act.

19 The State Department of Education may contract with an
20 independent entity for the reporting and analysis requirements of
21 this subsection.

22 M. Copies of the results of the screening instruments
23 administered pursuant to subsection A of this section shall be made
24 a part of the permanent record of each student.

1 SECTION 5. AMENDATORY 70 O.S. 2021, Section 1210.5E, is
2 amended to read as follows:

3 Section 1210.5E. A. Contingent upon the provision of
4 appropriated funds designated for such purpose, students who do not
5 perform satisfactorily on the mathematics portion of either the
6 norm-referenced or criterion-referenced tests for grades three
7 through eight required pursuant to Section 1210.508 of this title
8 shall be provided remediation. The remediation may include but not
9 be limited to tutorial instruction after regular school hours, on
10 Saturdays and during the summer. Such instruction shall not be
11 counted toward the ~~one-hundred-eighty-day~~ one-hundred-eighty-five-
12 day school year required in Section 1-109 of this title.

13 B. Implementation of this section shall be delayed until the
14 current expenditure per pupil in average daily attendance in public
15 elementary and secondary schools in unadjusted dollars for the 1998-
16 99 school year or any school year thereafter for Oklahoma, as
17 reported by the National Center for Education Statistics annually in
18 the Digest of Education Statistics, reaches at least ninety percent
19 (90%) of the regional average expenditure for that same year, and
20 funds are provided. For purposes of this section, the regional
21 average expenditure shall consist of the current expenditure per
22 pupil in average daily attendance in public elementary and secondary
23 schools in unadjusted dollars for each of the following states:
24 Arkansas, Colorado, Kansas, Missouri, New Mexico, Oklahoma, and

1 Texas, averaged together. By January 1 of each year, the State
2 Board of Education shall report whether or not the ninety-percent
3 expenditure level has been reached based on information reported
4 annually in the Digest of Education Statistics by the National
5 Center for Education Statistics. This section shall be implemented
6 on July 1 after the first January 1 report verifies that the ninety-
7 percent expenditure level has been reached and funds have been
8 provided for the specific purposes of this section.

9 SECTION 6. AMENDATORY 70 O.S. 2021, Section 4516, is
10 amended to read as follows:

11 Section 4516. The board of education of any school district
12 operating pursuant to the provisions of Section 4511 et seq. of this
13 title shall establish a school calendar whereby the teaching
14 sessions and vacation periods during the school year are on a
15 rotating basis.

16 Each selected school shall be closed for all students and
17 employees on regular school holidays.

18 The schools and classes shall be conducted for a total of no
19 less than ~~one hundred eighty (180)~~ one hundred eighty-five (185)
20 days or no less than ~~one thousand eighty (1,080)~~ one thousand one
21 hundred ten (1,110) hours during the academic year as provided for
22 in Section 1-109 of this title.

23 The provisions of all other laws relating to compulsory full-
24 time education and the enrollment and attendance of pupils in the

1 kindergarten, elementary and secondary grades shall be applicable
2 with respect to the regular school days prescribed for the entire
3 academic year established for the school at which a program pursuant
4 to Section 4511 et seq. of this title is conducted, and to the
5 attendance area established for such school.

6 SECTION 7. This act shall become effective July 1, 2026.

7 SECTION 8. It being immediately necessary for the preservation
8 of the public peace, health or safety, an emergency is hereby
9 declared to exist, by reason whereof this act shall take effect and
10 be in full force from and after its passage and approval.

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